

## GOVERNMENT HACK™

# Unit Assessment Book

Unit 5 — The Judicial Branch · Teacher Edition

### HOW TO USE THIS BOOK

Three parts: (1) Formative Checkpoints — a short check per standard for progress monitoring (MTSS); (2) Unit Summative — two parallel forms (A and B) for pre/post or retakes; (3) Teacher Answer Key + Item Analysis + Reteach.

All items are pulled from the Government Hack question bank. Assessment items are classroom-formative · pre-field-test.

Administering these forms is what generates the response data to CALIBRATE the pre-calibrated items — the first cycle of use closes the loop.

Keys and reteach live in this teacher book only — reproduce the student sections (formative + Form A/B) without the key section.

## Contents

## Part 1 — Formative Checkpoints (by standard)

A quick DOK-balanced check for each standard. Use for progress monitoring; reteach routing is in the Teacher Key.

### GC.19 — Article III & Judicial Power

**1. Most cases arrive at the U.S. Supreme Court through which type of jurisdiction?** [GC.19 · DOK 2 · pre-field-test]

- A. Appellate jurisdiction, on appeal from a lower court
- B. Original jurisdiction, as the first court to hear the case
- C. Legislative jurisdiction, referred by Congress
- D. Executive jurisdiction, assigned by the President

### GC.20 — Selecting & Confirming Justices

**1. Under the Constitution's 'Advice and Consent' requirement, which body must approve a Supreme Court nominee before that person can take the bench?** [GC.20 · DOK 1 · pre-field-test]

- A. The House of Representatives
- B. The Senate
- C. The state legislatures
- D. The current Supreme Court justices

### GC.21 — Judicial Review & Marbury v. Madison

**1. Marbury v. Madison (1803) is most significant because it established which power of the courts?** [GC.21 · DOK 2 · pre-field-test]

- A. The power to collect federal taxes
- B. The power to declare war on other nations
- C. Judicial review — the power to declare a law unconstitutional and void
- D. The power to choose the President in a tie

### GC.22 — Deciding What Is Constitutional

**1. A judge who defers to the elected branches and interprets the Constitution narrowly by its 'original intent' is practicing —** [GC.22 · DOK 2 · pre-field-test]

- A. judicial review
- B. judicial activism
- C. incorporation
- D. judicial restraint

## Part 2 — Unit Summative · Form A

### DIRECTIONS

Choose the best answer for each question. Assessment items are classroom-formative · pre-field-test.

Name: \_\_\_\_\_ Class / Period: \_\_\_\_\_ Date: \_\_\_\_\_

**1. The Constitution gives federal judges their offices 'during good Behaviour' — effectively for life — mainly to —** [GC.19 · DOK 2 · pre-field-test]

- A. guarantee that they can never be removed for any reason
- B. protect their independence from political pressure so they can rule on the law
- C. allow the President to replace them at the start of each term
- D. require them to also serve as members of Congress

**2. Which sequence correctly describes how a person becomes a U.S. Supreme Court justice?** [GC.20 · DOK 2 · pre-field-test]

- A. The Senate nominates; the President confirms by executive order
- B. The current justices choose a successor and the President signs off
- C. The President nominates; the Senate Judiciary Committee holds hearings; the full Senate confirms by majority vote
- D. The states nominate a candidate and the House confirms the choice

**3. A federal law directly conflicts with a clause of the U.S. Constitution. Based on the reasoning in Marbury v. Madison, how should a court resolve the conflict?** [GC.21 · DOK 3 · pre-field-test]

- A. Enforce the law, because Congress passed it and courts must defer to Congress
- B. Ask the President to decide which one controls
- C. Send the question to the state legislatures for a vote
- D. Treat the law as void, because the Constitution is the supreme law

**4. A court strikes down a long-standing law, reading the Constitution as a 'living document' that must adapt to new circumstances. This approach is best described as —** [GC.22 · DOK 3 · pre-field-test]

- A. judicial activism
- B. judicial restraint
- C. original jurisdiction
- D. the rule of four

## Part 3 — Unit Summative · Form B

### DIRECTIONS

Choose the best answer for each question. Assessment items are classroom-formative · pre-field-test.

Name: \_\_\_\_\_ Class / Period: \_\_\_\_\_ Date: \_\_\_\_\_

**1. What distinguishes the Supreme Court's original jurisdiction from its appellate jurisdiction?** [GC.19 · DOK 2 · pre-field-test]

- A. Original jurisdiction means the Court is reviewing a lower court's decision
- B. Original jurisdiction applies only to cases that begin in state courts
- C. The two terms describe exactly the same kind of case
- D. Original jurisdiction means the case is heard first at that court, not on appeal

**2. A Supreme Court seat opens with two years left in a President's term. Given how long a justice can serve, why might both parties in the Senate treat this single confirmation as unusually important?** [GC.20 · DOK 3 · pre-field-test]

- A. Because the new justice could shape the Court's decisions for decades, long after this President leaves office
- B. Because the justice must be re-confirmed by the Senate every year
- C. Because the House of Representatives will overturn the choice if it disagrees
- D. Because the President loses all other powers while a confirmation is pending

**3. Judicial review is best defined as the power of courts to —** [GC.21 · DOK 1 · pre-field-test]

- A. propose new laws for Congress to consider
- B. declare a law or government action unconstitutional and therefore void
- C. remove the President from office through impeachment
- D. set the federal budget each year

**4. Reading the Constitution as a 'living document' and being more willing to strike down laws or set new policy reflects which judicial approach?** [GC.22 · DOK 2 · pre-field-test]

- A. judicial restraint
- B. original jurisdiction
- C. judicial activism
- D. appellate review

## Part 4 — Teacher Answer Key + Item Analysis + Reteach

### READING THE ANALYSIS

Each item shows its standard, DOK, correct key, and TCAP reporting category, plus a reteach move. Distractor-based routing: a wrong choice signals which idea to reteach — pair with the workbook Cornell notes and Guided Support. Assessment items are classroom-formative · pre-field-test.

### Form A — key & reteach

| Item | Standard | DOK | Key | Reporting cat.               | What's Next if missed (reteach)                                                                              |
|------|----------|-----|-----|------------------------------|--------------------------------------------------------------------------------------------------------------|
| 1    | GC.19    | 2   | B   | RC-GOV5: The Judicial Branch | Revisit Article III & Judicial Power — Cornell cues + Guided Support; re-check with the Exit Ticket.         |
| 2    | GC.20    | 2   | C   | RC-GOV5: The Judicial Branch | Revisit Selecting & Confirming Justices — Cornell cues + Guided Support; re-check with the Exit Ticket.      |
| 3    | GC.21    | 3   | D   | RC-GOV5: The Judicial Branch | Revisit Judicial Review & Marbury v. Madison — Cornell cues + Guided Support; re-check with the Exit Ticket. |
| 4    | GC.22    | 3   | A   | RC-GOV5: The Judicial Branch | Revisit Deciding What Is Constitutional — Cornell cues + Guided Support; re-check with the Exit Ticket.      |

### Form B — key & reteach

| Item | Standard | DOK | Key | Reporting cat.               | What's Next if missed (reteach)                                                                              |
|------|----------|-----|-----|------------------------------|--------------------------------------------------------------------------------------------------------------|
| 1    | GC.19    | 2   | D   | RC-GOV5: The Judicial Branch | Revisit Article III & Judicial Power — Cornell cues + Guided Support; re-check with the Exit Ticket.         |
| 2    | GC.20    | 3   | A   | RC-GOV5: The Judicial Branch | Revisit Selecting & Confirming Justices — Cornell cues + Guided Support; re-check with the Exit Ticket.      |
| 3    | GC.21    | 1   | B   | RC-GOV5: The Judicial Branch | Revisit Judicial Review & Marbury v. Madison — Cornell cues + Guided Support; re-check with the Exit Ticket. |
| 4    | GC.22    | 2   | C   | RC-GOV5: The Judicial Branch | Revisit Deciding What Is Constitutional — Cornell cues + Guided Support; re-check with the Exit Ticket.      |

### Formative Checkpoints — key & reteach

| Item | Standard | DOK | Key | Reporting cat.               | What's Next if missed (reteach)                                                                         |
|------|----------|-----|-----|------------------------------|---------------------------------------------------------------------------------------------------------|
| 1    | GC.19    | 2   | A   | RC-GOV5: The Judicial Branch | Revisit Article III & Judicial Power — Cornell cues + Guided Support; re-check with the Exit Ticket.    |
| 2    | GC.20    | 1   | B   | RC-GOV5: The Judicial Branch | Revisit Selecting & Confirming Justices — Cornell cues + Guided Support; re-check with the Exit Ticket. |

| Item | Standard | DOK | Key | Reporting cat.               | What's Next if missed (reteach)                                                                              |
|------|----------|-----|-----|------------------------------|--------------------------------------------------------------------------------------------------------------|
| 3    | GC.21    | 2   | C   | RC-GOV5: The Judicial Branch | Revisit Judicial Review & Marbury v. Madison — Cornell cues + Guided Support; re-check with the Exit Ticket. |
| 4    | GC.22    | 2   | D   | RC-GOV5: The Judicial Branch | Revisit Deciding What Is Constitutional — Cornell cues + Guided Support; re-check with the Exit Ticket.      |

## Part 5 — Psychometric Blueprint (Teacher)

### ABOUT THESE NUMBERS

Every item carries a cognitive-rigor classification (Webb's DOK × Bloom's, located on the Hess Cognitive Rigor Matrix) and a pre-calibration IRT 3PL estimate: a = discrimination, b = difficulty, c = pseudo-guessing.

These IRT parameters are DESIGN-TIME ESTIMATES, not empirical calibrations. IRT 3PL parameters are pre-field-test design-time estimates, to be calibrated on field-test data. Assessment items are classroom-formative · pre-field-test.

Distractor codes: PK prior-knowledge · MC misconception · PE partial evidence · NE nearby error · CA causal attribution · AN anachronism · OG overgeneralization.

### BANK DISTRIBUTION

DOK: 1: 2 · 2: 7 · 3: 3

Bloom's: Understand: 7 · Remember: 2 · Apply: 1 · Analyze: 2

Mean discrimination a ≈ 1.317 · Mean difficulty b ≈ 0.067

Field-test-ready items: 12 of 12

### Form A — item psychometrics

| Item | Std   | DOK | Bloom's (Hess cell) | a   | b   | c   | C3 | FT? | Distractor codes |
|------|-------|-----|---------------------|-----|-----|-----|----|-----|------------------|
| 1    | GC.19 | 2   | Understand × DOK 2  | 1.3 | 0   | 0.2 | D2 | Y   | A:OG C:MC D:PK   |
| 2    | GC.20 | 2   | Understand × DOK 2  | 1.4 | 0.2 | 0.2 | D2 | Y   | A:MC B:MC D:PK   |
| 3    | GC.21 | 3   | Apply × DOK 3       | 1.6 | 0.9 | 0.2 | D2 | Y   | A:MC B:PK C:MC   |
| 4    | GC.22 | 3   | Analyze × DOK 3     | 1.5 | 0.8 | 0.2 | D2 | Y   | B:NE C:PK D:PK   |

### Form B — item psychometrics

| Item | Std   | DOK | Bloom's (Hess cell) | a   | b    | c   | C3 | FT? | Distractor codes |
|------|-------|-----|---------------------|-----|------|-----|----|-----|------------------|
| 1    | GC.19 | 2   | Understand × DOK 2  | 1.2 | -0.1 | 0.2 | D2 | Y   | A:MC B:NE C:MC   |
| 2    | GC.20 | 3   | Analyze × DOK 3     | 1.6 | 1    | 0.2 | D2 | Y   | B:MC C:PK D:MC   |
| 3    | GC.21 | 1   | Remember × DOK 1    | 1   | -1.3 | 0.2 | D2 | Y   | A:PK C:PK D:PK   |
| 4    | GC.22 | 2   | Understand × DOK 2  | 1.3 | 0.2  | 0.2 | D2 | Y   | A:NE B:PK D:PK   |

### Formative — item psychometrics

| Item | Std   | DOK | Bloom's (Hess cell) | a   | b    | c   | C3 | FT? | Distractor codes |
|------|-------|-----|---------------------|-----|------|-----|----|-----|------------------|
| 1    | GC.19 | 2   | Understand × DOK 2  | 1.2 | -0.2 | 0.2 | D2 | Y   | B:NE C:PK D:PK   |
| 2    | GC.20 | 1   | Remember × DOK 1    | 1   | -1.1 | 0.2 | D2 | Y   | A:PK C:MC D:MC   |

| Item | Std   | DOK | Bloom's (Hess cell) | a   | b   | c   | C3 | FT? | Distractor codes |
|------|-------|-----|---------------------|-----|-----|-----|----|-----|------------------|
| 3    | GC.21 | 2   | Understand x DOK 2  | 1.3 | 0.1 | 0.2 | D2 | Y   | A:PK B:PK D:PK   |
| 4    | GC.22 | 2   | Understand x DOK 2  | 1.4 | 0.3 | 0.2 | D2 | Y   | A:PK B:NE C:PK   |



## Part 6 — UDL Supports & Remediation (Teacher)

### UNIVERSAL DESIGN FOR LEARNING (UDL 3.0) SUPPORTS — APPLIES TO EVERY ITEM

*These supports vary the MEANS of access, not the mastery target. They apply to every item on the formative checkpoints and both summative forms.*

Representation — CAST 3.0 Rep — key terms glossed (EN/ES); read-aloud on request; large-print/screen-reader friendly

Action & Expression — [MC] respond by selecting/pointing/AT · [open] respond in writing, speech, or a labeled diagram; word processor/speech-to-text available

Engagement — action-oriented feedback via the remediation routing; DOK-tiered challenge

Supports vary the means, not the mastery target — UDL design, not modification. CAST (2024). Universal Design for Learning Guidelines version 3.0.

### HOW TO USE THIS SECTION

For each item: if a student misses it, start with the If-missed reteach, then route by the SPECIFIC wrong choice the student picked (each distractor signals a distinct misconception), and escalate through MTSS Tier 2 → Tier 3 if the misconception persists across parallel forms. Assessment items are classroom-formative · pre-field-test.

## Form A — UDL & distractor-based remediation

### Item 1 — GC.19 · DOK 2

**If missed:** Revisit “Article III & Judicial Power” using the unit's Cornell notes + the standard's graphic organizer; re-check with the Exit Ticket, then re-assess with a parallel-form item.

| Wrong choice | Signals misconception                                                                             | Targeted reteach                                         |
|--------------|---------------------------------------------------------------------------------------------------|----------------------------------------------------------|
| A            | Overgeneralizes tenure; judges can be removed by impeachment, so 'never for any reason' is false. | test the overgeneralization against a counter-case       |
| C            | Misconception that terms reset with each President; life tenure prevents this.                    | confront the misconception with a worked counter-example |
| D            | Confuses the branches; judges do not also sit in Congress.                                        | clarify the boundary with the confused concept           |

### MTSS ROUTING

Tier 2 — Small-group (Tier 2) reteach targeting the signaled misconception (10–15 min, organizer + worked example), then re-assess with a parallel item.

Tier 3 — If it persists across parallel forms (Tier 3): intensive 1:1 with concrete→representational→abstract scaffolding + think-aloud; progress-monitor weekly toward the same standard.

### Item 2 — GC.20 · DOK 2

**If missed:** Revisit “Selecting & Confirming Justices” using the unit's Cornell notes + the standard's graphic organizer; re-check with the Exit Ticket, then re-assess with a parallel-form item.

| Wrong choice | Signals misconception                                                                         | Targeted reteach                                         |
|--------------|-----------------------------------------------------------------------------------------------|----------------------------------------------------------|
| A            | Reverses the roles; the President nominates and the Senate confirms, not the reverse.         | confront the misconception with a worked counter-example |
| B            | Misconception that the Court is self-perpetuating; justices do not pick successors.           | confront the misconception with a worked counter-example |
| D            | Confuses the confirming body; states do not nominate and the House does not confirm justices. | clarify the boundary with the confused concept           |

**MTSS ROUTING**

Tier 2 — Small-group (Tier 2) reteach targeting the signaled misconception (10-15 min, organizer + worked example), then re-assess with a parallel item.

Tier 3 — If it persists across parallel forms (Tier 3): intensive 1:1 with concrete→representational→abstract scaffolding + think-aloud; progress-monitor weekly toward the same standard.

**Item 3 — GC.21 · DOK 3**

**If missed:** Revisit “Judicial Review & Marbury v. Madison” using the unit's Cornell notes + the standard's graphic organizer; re-check with the Exit Ticket, then re-assess with a parallel-form item.

| Wrong choice | Signals misconception                                                                     | Targeted reteach                                         |
|--------------|-------------------------------------------------------------------------------------------|----------------------------------------------------------|
| A            | Contradicts Marbury; a law repugnant to the Constitution cannot simply be enforced.       | confront the misconception with a worked counter-example |
| B            | Confuses the branches; courts, not the President, decide constitutionality.               | clarify the boundary with the confused concept           |
| C            | Misconception that states resolve constitutional conflicts; that is the judiciary's role. | confront the misconception with a worked counter-example |

**MTSS ROUTING**

Tier 2 — Small-group (Tier 2) reteach targeting the signaled misconception (10-15 min, organizer + worked example), then re-assess with a parallel item.

Tier 3 — If it persists across parallel forms (Tier 3): intensive 1:1 with concrete→representational→abstract scaffolding + think-aloud; progress-monitor weekly toward the same standard.

**Item 4 — GC.22 · DOK 3**

**If missed:** Revisit “Deciding What Is Constitutional” using the unit's Cornell notes + the standard's graphic organizer; re-check with the Exit Ticket, then re-assess with a parallel-form item.

| Wrong choice | Signals misconception                                                                                        | Targeted reteach                               |
|--------------|--------------------------------------------------------------------------------------------------------------|------------------------------------------------|
| B            | Restraint is the opposite; it defers to elected branches and original intent rather than striking laws down. | contrast the near-miss with the precise answer |
| C            | Original jurisdiction is about which court hears a case first, not a judicial philosophy.                    | clarify the boundary with the confused concept |
| D            | The rule of four is how the Court agrees to hear a case, not how boldly it rules.                            | clarify the boundary with the confused concept |

| Wrong choice                                                                                                                                                                                                                                                                                                                                                                  | Signals misconception | Targeted reteach |
|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------|------------------|
| <b>MTSS ROUTING</b><br>Tier 2 — Small-group (Tier 2) reteach targeting the signaled misconception (10–15 min, organizer + worked example), then re-assess with a parallel item.<br>Tier 3 — If it persists across parallel forms (Tier 3): intensive 1:1 with concrete→representational→abstract scaffolding + think-aloud; progress-monitor weekly toward the same standard. |                       |                  |

## Form B — UDL & distractor-based remediation

### Item 1 — GC.19 · DOK 2

**If missed:** Revisit “Article III & Judicial Power” using the unit's Cornell notes + the standard's graphic organizer; re-check with the Exit Ticket, then re-assess with a parallel-form item.

| Wrong choice | Signals misconception                                                                          | Targeted reteach                                         |
|--------------|------------------------------------------------------------------------------------------------|----------------------------------------------------------|
| A            | Reverses the definitions; reviewing a lower court is appellate, not original, jurisdiction.    | confront the misconception with a worked counter-example |
| B            | Original jurisdiction is not limited to state-court origins; it is about hearing a case first. | contrast the near-miss with the precise answer           |
| C            | Misconception that the two are identical; they describe different roles.                       | confront the misconception with a worked counter-example |

#### MTSS ROUTING

Tier 2 — Small-group (Tier 2) reteach targeting the signaled misconception (10–15 min, organizer + worked example), then re-assess with a parallel item.  
 Tier 3 — If it persists across parallel forms (Tier 3): intensive 1:1 with concrete→representational→abstract scaffolding + think-aloud; progress-monitor weekly toward the same standard.

### Item 2 — GC.20 · DOK 3

**If missed:** Revisit “Selecting & Confirming Justices” using the unit's Cornell notes + the standard's graphic organizer; re-check with the Exit Ticket, then re-assess with a parallel-form item.

| Wrong choice | Signals misconception                                                                     | Targeted reteach                                         |
|--------------|-------------------------------------------------------------------------------------------|----------------------------------------------------------|
| B            | Misconception that justices face annual re-confirmation; they serve during good behavior. | confront the misconception with a worked counter-example |
| C            | The House has no role in confirming or overturning a justice.                             | clarify the boundary with the confused concept           |
| D            | Misconception that a President is stripped of powers during a confirmation.               | confront the misconception with a worked counter-example |

#### MTSS ROUTING

Tier 2 — Small-group (Tier 2) reteach targeting the signaled misconception (10–15 min, organizer + worked example), then re-assess with a parallel item.  
 Tier 3 — If it persists across parallel forms (Tier 3): intensive 1:1 with concrete→representational→abstract scaffolding + think-aloud; progress-monitor

| Wrong choice | Signals misconception | Targeted reteach                 |
|--------------|-----------------------|----------------------------------|
|              |                       | weekly toward the same standard. |

### Item 3 — GC.21 · DOK 1

**If missed:** Revisit “Judicial Review & Marbury v. Madison” using the unit's Cornell notes + the standard's graphic organizer; re-check with the Exit Ticket, then re-assess with a parallel-form item.

| Wrong choice | Signals misconception                                          | Targeted reteach                               |
|--------------|----------------------------------------------------------------|------------------------------------------------|
| A            | Proposing laws is a legislative function, not judicial review. | clarify the boundary with the confused concept |
| C            | Impeachment is a congressional power, not judicial review.     | clarify the boundary with the confused concept |
| D            | Setting the budget is a legislative power, not a court power.  | clarify the boundary with the confused concept |

#### MTSS ROUTING

Tier 2 — Small-group (Tier 2) reteach targeting the signaled misconception (10–15 min, organizer + worked example), then re-assess with a parallel item.

Tier 3 — If it persists across parallel forms (Tier 3): intensive 1:1 with concrete→representational→abstract scaffolding + think-aloud; progress-monitor weekly toward the same standard.

### Item 4 — GC.22 · DOK 2

**If missed:** Revisit “Deciding What Is Constitutional” using the unit's Cornell notes + the standard's graphic organizer; re-check with the Exit Ticket, then re-assess with a parallel-form item.

| Wrong choice | Signals misconception                                                            | Targeted reteach                               |
|--------------|----------------------------------------------------------------------------------|------------------------------------------------|
| A            | Restraint is the opposite approach — deference and original intent.              | contrast the near-miss with the precise answer |
| B            | Original jurisdiction concerns which court hears a case first, not a philosophy. | clarify the boundary with the confused concept |
| D            | Appellate review is a process, not the activism-vs-restraint philosophy.         | clarify the boundary with the confused concept |

#### MTSS ROUTING

Tier 2 — Small-group (Tier 2) reteach targeting the signaled misconception (10–15 min, organizer + worked example), then re-assess with a parallel item.

Tier 3 — If it persists across parallel forms (Tier 3): intensive 1:1 with concrete→representational→abstract scaffolding + think-aloud; progress-monitor weekly toward the same standard.

## Formative Checkpoints — UDL & distractor-based remediation

### Item 1 — GC.19 · DOK 2

**If missed:** Revisit “Article III & Judicial Power” using the unit's Cornell notes + the standard's graphic organizer; re-check with the Exit Ticket, then re-assess with a parallel-form item.

| Wrong choice | Signals misconception                                                                                         | Targeted reteach                               |
|--------------|---------------------------------------------------------------------------------------------------------------|------------------------------------------------|
| B            | Original jurisdiction exists but is the exception, not how most cases arrive — right topic, wrong frequency.  | contrast the near-miss with the precise answer |
| C            | Confuses the judicial branch with the legislative role; Congress does not refer cases up as 'jurisdiction.'   | clarify the boundary with the confused concept |
| D            | Confuses judicial jurisdiction with an executive assignment; the President does not route cases to the Court. | clarify the boundary with the confused concept |

#### MTSS ROUTING

Tier 2 — Small-group (Tier 2) reteach targeting the signaled misconception (10-15 min, organizer + worked example), then re-assess with a parallel item.

Tier 3 — If it persists across parallel forms (Tier 3): intensive 1:1 with concrete→representational→abstract scaffolding + think-aloud; progress-monitor weekly toward the same standard.

### Item 2 — GC.20 · DOK 1

**If missed:** Revisit “Selecting & Confirming Justices” using the unit's Cornell notes + the standard's graphic organizer; re-check with the Exit Ticket, then re-assess with a parallel-form item.

| Wrong choice | Signals misconception                                                                           | Targeted reteach                                         |
|--------------|-------------------------------------------------------------------------------------------------|----------------------------------------------------------|
| A            | Confuses the Senate's confirmation role with the House; the House does not confirm justices.    | clarify the boundary with the confused concept           |
| C            | Misconception that states approve federal appointments; confirmation is a federal Senate power. | confront the misconception with a worked counter-example |
| D            | Misconception that the Court fills its own seats; sitting justices play no formal role.         | confront the misconception with a worked counter-example |

#### MTSS ROUTING

Tier 2 — Small-group (Tier 2) reteach targeting the signaled misconception (10-15 min, organizer + worked example), then re-assess with a parallel item.

Tier 3 — If it persists across parallel forms (Tier 3): intensive 1:1 with concrete→representational→abstract scaffolding + think-aloud; progress-monitor weekly toward the same standard.

### Item 3 — GC.21 · DOK 2

**If missed:** Revisit “Judicial Review & Marbury v. Madison” using the unit's Cornell notes + the standard's graphic organizer; re-check with the Exit Ticket, then re-assess with a parallel-form item.

| Wrong choice | Signals misconception                                                                         | Targeted reteach                               |
|--------------|-----------------------------------------------------------------------------------------------|------------------------------------------------|
| A            | Taxing is a legislative power, not a judicial one established by Marbury.                     | clarify the boundary with the confused concept |
| B            | Declaring war is a power of Congress, not a court power from Marbury.                         | clarify the boundary with the confused concept |
| D            | Choosing a President in a tie is a House role under the 12th Amendment, unrelated to Marbury. | clarify the boundary with the confused concept |

#### MTSS ROUTING

Tier 2 — Small-group (Tier 2) reteach targeting the signaled misconception (10–15 min, organizer + worked example), then re-assess with a parallel item.

Tier 3 — If it persists across parallel forms (Tier 3): intensive 1:1 with concrete→representational→abstract scaffolding + think-aloud; progress-monitor weekly toward the same standard.

### Item 4 — GC.22 · DOK 2

**If missed:** Revisit “Deciding What Is Constitutional” using the unit's Cornell notes + the standard's graphic organizer; re-check with the Exit Ticket, then re-assess with a parallel-form item.

| Wrong choice | Signals misconception                                                                              | Targeted reteach                               |
|--------------|----------------------------------------------------------------------------------------------------|------------------------------------------------|
| A            | Judicial review is the power itself, not the philosophy of how boldly to use it.                   | clarify the boundary with the confused concept |
| B            | Activism is the opposite approach — greater willingness to strike down laws or set policy.         | contrast the near-miss with the precise answer |
| C            | Incorporation applies the Bill of Rights to the states; it is unrelated to activism vs. restraint. | clarify the boundary with the confused concept |

#### MTSS ROUTING

Tier 2 — Small-group (Tier 2) reteach targeting the signaled misconception (10–15 min, organizer + worked example), then re-assess with a parallel item.

Tier 3 — If it persists across parallel forms (Tier 3): intensive 1:1 with concrete→representational→abstract scaffolding + think-aloud; progress-monitor weekly toward the same standard.